



CHAPTER xi.

An Act to alter the constitution of the Shoreham Harbour Trustees so as to provide for the appointment of a trustee by the Chamber of Shipping of the United Kingdom to authorise the Trustees to acquire lands to make further provision with respect to the rates tolls dues and charges demandable by them to make further provision with respect to the raising of money by the Trustees and other financial matters and for other purposes. [30th June 1948.]

WHEREAS by the Shoreham Harbour Act 1926 (in this Act referred to as "the Act of 1926") the Shoreham Harbour Trustees (in this Act referred to as "the Trustees") were incorporated with the powers and duties and for the purposes therein mentioned and further powers were conferred upon them by the Shoreham Harbour Act 1930 and the Shoreham Harbour Act 1937: 16 & 17 Geo. 5.
c. xlvii.
20 & 21 Geo. 5.
c. clvii.
1 Edw. 8. &
1 Geo. 6.
c. cxxi.

And whereas the Trustees now comprise eighteen persons of whom five are elected by traders and thirteen are appointed by certain local authorities and by the British Transport Commission as successors to the Southern Railway Company as specified in the Act of 1926:

And whereas it is expedient to make provision for the addition to the Trustees of a person appointed by the Chamber of Shipping of the United Kingdom:

And whereas it is expedient that the Trustees should be empowered to acquire certain lands:

And whereas it is expedient to make further provision with respect to the rates tolls dues and charges which may be taken and demanded by the Trustees:

And whereas it is expedient to empower the Trustees to raise further money for the purposes of their undertaking by the creation and issue of redeemable guaranteed stock carrying the same rights and having the benefit of the same guarantees as stock which they are empowered to create and issue under the Act of 1926 and to make further provision with respect to the finances of the Trustees:

And whereas it is expedient that the other provisions of this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas plans of the lands which may be taken or used compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of those lands have been deposited with the clerk of the county council of the administrative county of East Sussex and are in this Act respectively referred to as the deposited plans and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short and
collective
titles.

1.—(1) This Act may be cited as the Shoreham Harbour Act 1948.

(2) The Shoreham Harbour Acts 1926 1930 and 1937 and this Act may be cited together as the Shoreham Harbour Acts 1926 to 1948.

Division of
Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Alteration of constitution of Trustees.

Part III.—Lands.

Part IV.—Rates.

Part V.—Financial.

Part VI.—Miscellaneous.

3. The following Acts so far as applicable for the purposes of and not inconsistent with the provisions of this Act are hereby incorporated with this Act:—

PART I.
—cont.
Incorporation
of Acts.
8 & 9 Vict.
c. 18.

The Lands Clauses Acts except sections 92 and 127 to 132 of the Lands Clauses Consolidation Act 1845:

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Trustees and shall be sufficient without the addition of the sureties mentioned in that section;

The Harbours Act 1847 to the same extent and in the same manner mutatis mutandis as the same is incorporated by section 8 (Incorporation of Harbours Clauses Act) of the Act of 1926.

10 & 11 Vict.
c. 27.

4.—(1) In this Act unless there is something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Act of 1926 or by the Acts incorporated herewith have the same respective meanings. And—

Interpretation.

“ the Act of 1926 ” means the Shoreham Harbour Act 1926;

“ the Act of 1930 ” means the Shoreham Harbour Act 1930;

“ the Act of 1937 ” means the Shoreham Harbour Act 1937;

“ the chamber of shipping ” means the Chamber of Shipping of the United Kingdom.

(2) Any reference in this Act to any enactment or enactments shall be construed as a reference to that enactment or those enactments as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II.

ALTERATION OF CONSTITUTION OF TRUSTEES.

5.—(1) There shall be added to the Trustees one trustee to be appointed by the chamber of shipping.

Increase of
number of
Trustees.

(2) The trustee so appointed shall be one of the appointed Trustees within the meaning and for the purposes of the Shoreham Harbour Acts 1926 to 1948 and shall with the Trustees for the time being in office under the Shoreham Harbour Acts 1926 to 1937 form and be to all intents the body corporate of the Shoreham Harbour Trustees.

6.—(1) As soon as may be after the passing of this Act and on or before the thirtieth day of April nineteen hundred and fifty and on or before the same date in every third year thereafter the chamber of shipping shall appoint the trustee to be appointed by them.

As to trustee
appointed by
chamber of
shipping.

PART II.
—cont.

(2) The appointment of a trustee under this section shall in the case of the appointment made as soon as may be after the passing of this Act take effect immediately on its being made and in the case of the appointment made in the year nineteen hundred and fifty or any subsequent third year shall take effect as from the commencement of the annual meeting held in such year and at the commencement of each such annual meeting the Trustee appointed in pursuance of this section then in office shall go out of office and his place shall be filled by the trustee then last appointed.

(3) The person retiring from office as aforesaid shall be eligible for re-appointment.

(4) Section 14 (Qualification of appointed Trustees) of the Act of 1926 shall not apply in respect of the trustee appointed by the chamber of shipping.

Application of
certain
provisions of
Act of 1926.

7.—(1) Section 16 (Provision for casual vacancies) and section 19 (As to person appointed and elected as trustee) of the Act of 1926 shall apply and have effect as if the words “or the Chamber of Shipping of the United Kingdom” were inserted therein after the words “railway company” wherever those words occur.

(2) Whenever any trustee is appointed by the chamber of shipping the secretary of the chamber shall give notice in writing to the clerk of the appointment and section 17 (Evidence of appointment of appointed Trustees) of the Act of 1926 shall apply and have effect accordingly.

(3) Section 18 (Trustees may act notwithstanding any vacancy) of the Act of 1926 shall apply and have effect as if the words “or of the Chamber of Shipping of the United Kingdom” were inserted therein after the word “authorities” and as if the words “or of Part II of the Shoreham Harbour Act 1948” were added at the end thereof.

PART III.

LANDS.

Power to
take lands.

8.—(1) The Trustees may enter upon take appropriate and use the lands in the borough of Hove at the eastern end of the harbour and numbered 1 2 and 3 in that borough on the deposited plans.

15 & 16 Geo. 5.
c. cxvii.

(2) Sub-paragraph (c) of paragraph (1) of section 11 (For the mutual protection of the Hove Seaside Villas Limited Paget Baxter and the Trustees) of the New Shoreham Harbour Act 1925 (which section was not repealed by and is set out in Part II of the First Schedule to the Act of 1926) is hereby repealed.

(3) The Trustees shall not except with the consent of the Hove Corporation acquire under the powers of this section any interest of that corporation in the sluice connecting the lagoon with the harbour nor shall anything in this Act affect any right or obligation of the Hove Corporation existing at the passing of this Act in or with respect to that sluice.

9.—(1) If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Trustees after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the borough of Hove for the correction thereof.

Correction of errors in deposited plans and book of reference.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described.

(3) Such certificate shall be deposited with the clerk of the county council of the administrative county of East Sussex and a duplicate thereof shall also be deposited with the town clerk of the borough of Hove and thereupon the deposited plans or deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Trustees to take the lands in accordance with the certificate.

(4) Such certificate and duplicate respectively shall be kept by the clerks with whom they are deposited with the other documents to which the same relate.

10. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Part of this Act the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919 shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the land created after the twenty-seventh day of November nineteen hundred and forty-seven if in the opinion of the tribunal or authority the improvement alteration or building or the interest in respect of which the claim is made was not reasonably necessary and was made erected or created with a view to obtaining or increasing compensation under this Act.

Compensation in case of recently acquired interest.

9 & 10 Geo. 5.
c. 57.

PART III.

—cont.

Power to enter
property for
survey and
valuation.

11. The Trustees and their surveyors officers and servants and any person duly authorised in writing under the hand of the clerk may at all reasonable times on giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Part of this Act authorised to be taken and used or any of them for the purpose of surveying and valuing those lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Extinction of
private rights
of way.

12.—(1) All private rights of way over any lands which the Trustees are authorised by this Act to acquire compulsorily shall be extinguished as from the date of the acquisition of such lands by the Trustees if the Trustees shall by resolution so determine and give notice in writing of such resolution to the owner of any right of way referred to therein.

(2) The Trustees shall make full compensation to all persons interested in respect of any rights extinguished under the provisions of this section and such compensation shall be settled in manner provided by the Acquisition of Land (Assessment of Compensation) Act 1919.

PART IV.

RATES.

Amendment of
section 59 of
Act of 1926.

13. Section 59 (Rates on goods) of the Act of 1926 shall have effect as if the following subsection were added at the end thereof:—

“(2) For the purposes of this section animals and goods loaded on any vessel within the harbour shall be deemed to be shipped within the harbour whether or not they are intended to be conveyed in that vessel out of the harbour.”

Rates on
goods and
vessels.

14.—(1) For Part I of the Third Schedule to the Act of 1926 there shall be substituted Part I of the First Schedule to this Act and section 59 (Rates on goods) of the Act of 1926 shall have effect as if Part I of the First Schedule to this Act were referred to therein instead of Part I of the Third Schedule to the Act of 1926 and the Shoreham Harbour Acts 1926 to 1948 shall be read and construed accordingly.

(2) For Parts II and III of the Third Schedule to the Act of 1926 there shall be substituted Parts II and III of the First Schedule to this Act and section 60 (Rates on vessels) of the Act of 1926 shall have effect as if Parts II and III of the

First Schedule to this Act were referred to therein instead of Parts II and III of the Third Schedule to the Act of 1926 and the Shoreham Harbour Acts 1926 to 1948 shall be read and construed accordingly.

PART IV.
—cont.

(3) Section 27 (Rates on vessels used for pleasure and small craft) of and the schedule to the Act of 1930 are hereby repealed.

15. Section 68 (Harbour-master may prevent sailing of vessels) of the Act of 1926 shall have effect and shall be deemed always to have had effect as if the words "the collector of rates" were substituted therein for the words "the collector." Amendment of section 68 of Act of 1926.

PART V.

FINANCIAL.

16. The Act of 1926 shall have effect as if—

(a) in section 84 (Power to create additional stock) there- of three hundred and ninety-four thousand pounds were substituted for one hundred and forty-four thousand pounds; and

Power to create additional guaranteed stock.

(b) the following purposes were included in the said section 84 along with and in addition to the purposes therein mentioned:—

(i) the payment of the costs charges and expenses referred to in the final section of this Act;

(ii) the general purposes of the harbour undertaking to which capital is properly applicable;

(iii) the repayment of any money raised by the Trustees by mortgage under the powers conferred by section 19 (Power to raise money by mortgage) of this Act; and

(c) the reference in paragraph (3) of section 29 (Power to create additional guaranteed stock) of the Act of 1930 to section 31 (Power to obtain temporary advances for expenditure on capital account) of that Act were a reference to that section 31 as amended by section 18 (Amendment of section 31 of Act of 1930) of this Act.

17.—(1) Notwithstanding anything contained in the Shoreham Harbour Acts 1926 to 1937 the Trustees may from time to time if they think fit create and issue the whole or any part of the additional Shoreham Harbour four and a half per centum guaranteed redeemable stock authorised by the Act of 1926 which has not for the time being been issued

As to rate of interest on guaranteed stock.

PART V.
—cont.

on the terms that it shall bear interest at such rate (whether greater or less than four and a half per centum per annum) not exceeding (except with the approval of the Minister) five per centum per annum on the nominal value thereof as the Trustees may think fit.

(2) Any stock so issued shall as and when issued be called and known as "Shoreham Harbour per centum guaranteed redeemable stock" according to the rate of interest attached thereto pursuant to this section and save as to the rate of interest payable thereon shall carry the same rights and privileges as the rest of the guaranteed stock.

(3) Section 30 (Power to issue additional stock carrying a higher rate of interest than four and a half per centum) of the Act of 1930 shall not apply in the case of any stock created and issued by the Trustees after the date of the passing of this Act.

Amendment
of section 31
of Act of 1930.

18. Section 31 (Power to obtain temporary advances for expenditure on capital account) of the Act of 1930 shall have effect as if in subsection (1) thereof—

- (a) the purposes (i) and (ii) mentioned in paragraph (b) of section 16 (Power to create additional guaranteed stock) of this Act were included among the purposes for which the Trustees may obtain advances;
- (b) the words "and by the Shoreham Harbour Act 1948 or by mortgage under the powers conferred by the last-mentioned Act exceed three hundred and ninety-four thousand pounds" were substituted for the words "exceed one hundred and forty-four thousand pounds";
- (c) the words "or by mortgage" were inserted immediately following the words "as so amended."

Power to
raise money by
mortgage.

19.—(1) The Trustees may raise by mortgage any money which they are for the time being authorised to raise by the creation and issue of additional guaranteed redeemable stock.

(2) Subsections (2) to (6) of section 31 (Power to obtain temporary advances for expenditure on capital account) of the Act of 1930 shall extend and apply with respect to money raised by mortgage under the powers of this section as if those subsections were re-enacted in this section with any necessary modifications.

Limit of
interest on
money raised
on temporary
advances or by
mortgage.

20. The Trustees shall not without the approval of the Minister pay interest at a rate exceeding five per centum per annum on any advance made to them after the date of the passing of this Act under section 31 (Power to obtain tem-

porary advances for expenditure on capital account) of the Act of 1930 or on any money raised by them by mortgage under the last preceding section of this Act.

PART V.
—cont.

21.—(1) Whenever the Trustees determine to raise any money by mortgage they may grant mortgages in pursuance of the provisions of this section. A mortgage so granted is in this Act referred to as a "harbour mortgage."

Provisions
as to
mortgages.

(2) Every harbour mortgage shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Trustees and may be made in the form contained in the Second Schedule to this Act or in a form to the like effect.

(3) (a) The Trustees shall pay off all money raised by them by harbour mortgage either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months or when the money is repaid by half-yearly instalments within six months from the date on which the money is raised.

(b) Such money shall be paid off within thirty years from the date or respective dates of raising the same.

(4) Money raised by the Trustees by harbour mortgage and the interest thereon shall except as to the date of repayment rank equally without any priority or preference with all the guaranteed stock and with all money borrowed under section 31 (Power to obtain temporary advances for expenditure on capital account) of the Act of 1930 and the interest on that stock and money.

(5) The under-mentioned provisions of the Act of 1926 shall apply to and with respect to the harbour mortgages and any moneys raised by such mortgages as if such mortgages were new stock or guaranteed stock and with any other necessary modifications:—

Section 86 (Application of moneys raised);

Section 87 (Incidents of guaranteed stock);

Subsections (2) to (6) of section 90 (Redemption of guaranteed stock) (in cases where the Trustees determine to repay by means of a sinking fund any money raised by a harbour mortgage);

Section 91 (Return as to sinking fund &c. to be made to Minister);

PART V.
—cont.

Paragraphs (2) and (3) of and the proviso to section 93
(Application of harbour revenue after commencement of Act);

Section 94 (Appointment of receiver);

Section 95 (Protection of holders of guaranteed stock);

Section 96 (Trustees not to regard trusts);

Section 103 (Transmission of stock);

Section 104 (Receipts of joint holders);

Section 105 (Receipt in case of persons not sui juris).

As to register
of and
transfers of
mortgages.

22.—(1) There shall be kept at the harbour office a register of harbour mortgages and within fourteen days after the date of any harbour mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to inspection by any mortgagee or other person entitled to any harbour mortgage during office hours at the said office without fee or reward and the clerk or other the person having the custody of the register refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(2) Any mortgagee or other person entitled to any harbour mortgage may transfer his estate rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or in a form to the like effect and shall not contain any recital trust power or proviso whatsoever.

(3) There shall be kept at the harbour office a register of transfers of harbour mortgages and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the deed shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Trustees shall not be in any manner responsible to the transferee.

(4) On the registration of any deed of transfer the transferee his executors or administrators shall be entitled to the full benefit of the harbour mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate rights and interest in any such mortgage and no person except the last registered transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(5) (a) The Trustees may close the register of transfers of harbour mortgages on any day not more than thirty days next before the date on which any interest on the mortgages is payable but so that the register be not at any time kept closed for more than twenty-one days.

(b) The persons who on such closing day are entered in the register as holders of any harbour mortgage shall as between them and any transferee of that mortgage be entitled to the interest next payable thereon.

(c) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

23.—(1) The local authorities or any of them may with the consent of the Minister of Health lend to the Trustees any sum or sums which the Trustees are empowered to raise or borrow on such terms and conditions and in such form as may be agreed between the Trustees and the local authority concerned. Power for local authorities to lend money to Trustees.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this section shall extend and apply to money borrowed by the local authorities (other than the Brighton Corporation) for the purposes of this section. 23 & 24 Geo. 5. c. 51.

(3) The lending of money to the Trustees shall be deemed to be a purpose of the Brighton Corporation Act 1931 which the Brighton Corporation may borrow money with the consent of the Minister of Health under sub-paragraph (iii) of paragraph (a) of subsection (2) of section 450 (New borrowing powers) of that Act. 21 & 22 Geo. 5. c. cix.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section upon the local authorities otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945. 8 & 9 Geo. 6. c. 18.

24.—(1) The Trustees on any offer to the public of guaranteed stock or any other securities which the Trustees are for the time being authorised to issue may pay a commission not exceeding (except with the consent of the Minister) three per centum to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally for such stock or securities or procuring or agreeing to procure subscriptions therefor whether absolute or conditional if the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid are disclosed in the prospectus advertisement or other document of the Trustees inviting subscriptions or offers for such stock or securities. Power to pay underwriting commission.

PART V.
—cont.

(2) Nothing in this section shall affect any power of the Trustees to pay brokerage.

As to reserve
fund.

25.—(1) Section 93 (Application of harbour revenue after commencement of Act) of the Act of 1926 shall have effect as if in paragraph (5) thereof—

- (a) the words “ one and a half per centum of the aggregate capital expenditure on the harbour undertaking ” were substituted for the words “ one thousand pounds per annum ”;
- (b) the words “ a sum equal to twenty per centum of the aggregate capital expenditure on the harbour undertaking ” were substituted for the words “ the sum of forty thousand pounds ” in both places where those words occur.

(2) Section 3 (Additional contributions to reserve fund) and paragraph (a) of section 4 (Amendment of sections 93 and 106 of Act of 1926) of the Act of 1937 are hereby repealed.

Saving for
powers of
Treasury.

9 & 10 Geo. 6.
c. 58.

26. It shall not be lawful to exercise the powers of borrowing or raising capital conferred by this Act otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

PART VI.

MISCELLANEOUS.

Removal of
sunk stranded
or abandoned
vessels.

27.—(1) Whenever any vessel is sunk stranded or abandoned in any part of the harbour the Trustees may if they think fit cause the vessel—

- (a) to be raised or removed; or
- (b) (in the case of any vessel which it is not reasonably practicable to remove) to be blown up or otherwise destroyed in such manner as to clear the harbour.

(2) The Trustees may recover from the owner of any such vessel all expenses incurred by the Trustees under this section in connection with that vessel or in raising removing or saving any furniture tackle and apparel thereof or any cargo goods chattels and effects raised removed or saved therefrom or in marking lighting watching buoying or otherwise controlling such vessel either summarily as a civil debt where the amount recoverable does not exceed twenty pounds or as a debt in any court of competent jurisdiction:

Provided always that the Trustees may if they think fit and shall if so required by the owner of the vesselⁿ cause such

vessel and any furniture tackle apparel cargo goods chattels and effects or any part of the same respectively so raised removed or saved as aforesaid to be sold in such manner as they think fit and out of the proceeds of the sale may after paying any duties of customs or excise which shall be payable in respect of the said cargo goods chattels and effects reimburse themselves for any such expenses and shall hold the surplus if any of those proceeds in trust for the persons entitled thereto and in case such proceeds shall be insufficient to reimburse the Trustees such expenses the deficiency may be recovered by the Trustees in manner aforesaid.

(3) The Trustees shall (except in any case which in their opinion is a case of emergency) before raising removing blowing up or destroying any vessel under the provisions of this section give to the owner of the vessel twenty-four hours' notice of their intention so to do and if within twelve hours after the expiration of such notice the owner gives to the Trustees notice in writing of his intention himself to raise and remove the vessel he shall be at liberty to do so in lieu of the Trustees:

Provided that if the owner gives any such notice as last aforesaid—

- (a) he shall in raising or removing the vessel comply with any directions which may from time to time be given to him by or on behalf of the Trustees for the purpose of preventing interference with navigation; and
- (b) he shall forthwith after giving such notice commence and shall with all diligent dispatch proceed with and complete the raising or removal of the vessel;

and if such raising or removal be not completed within seven days after the giving of such notice by the owner such notice shall be null and void and the Trustees shall be at liberty to cause the vessel to be raised or removed or blown up or otherwise destroyed in accordance with the provisions of this section as if the owner had not given such notice.

(4) The Trustees shall (except in any case which in their opinion is a case of emergency or when required by the owner to sell) before selling any vessel under the provisions of this section give to the owner seven days' notice of their intention so to do.

(5) Any notice given by the Trustees pursuant to subsection (3) or subsection (4) of this section shall be given by delivering the same to the owner or by posting a prepaid letter addressed to the owner at the place in the United Kingdom where he carries on business or at his last known place of abode in the United Kingdom or if the owner or his place of business or abode is not known to the Trustees then by exhibiting such

PART VI.
—cont.

notice on the outer door of the harbour office for twenty-four hours in the case of a notice given under the said subsection (3) or for seven days in the case of a notice given under the said subsection (4).

(6) In this section the expression “ owner ” in relation to any vessel sunk stranded or abandoned as aforesaid means the owner of that vessel at the time of the sinking stranding or abandonment thereof.

(7) The powers conferred on the Trustees by this section shall be in addition to and not in derogation of any other powers exercisable by them for or with respect to the removal of wrecks.

Directions of
harbour-
master.

28. Section 52 of the Harbours Act 1847 in its application to the Trustees and the harbour-master—

- (a) shall extend to empower the harbour-master to give directions prohibiting the mooring of vessels in any particular part or parts of the harbour;
- (b) shall not be construed to require the harbour-master to give particular directions in the case of every vessel in respect of which it is desired to exercise any of the powers of that section but in pursuance of that section for all or any of the purposes thereof the harbour-master shall be entitled to give general directions applicable to all vessels or to particular classes of vessels.

Orders of
harbour-
master need
not be in
writing.

29. Section 53 of the Harbours Act 1847 in its application to the Trustees and the harbour-master shall not be construed to require the harbour-master to serve a notice in writing of his directions upon the master of a vessel but such directions may be given verbally or otherwise communicated to such master but a notice that is not in writing shall not be deemed to be sufficient unless in the opinion of the court before whom any case may be heard it was not reasonably practicable to serve a written notice on the master of the vessel.

Application of
section 9 of
Act of 1937.

30. Section 9 (Inquiries by Minister) of the Act of 1937 shall extend and apply to and for the purposes of this Act as if it were re-enacted herein with any necessary modifications.

Saving for
town and
country
planning.

7 & 8 Geo. 6.
c. 47.
9 & 10 Geo. 6.
c. 68.

31.—(1) The provisions of the Town and Country Planning Acts 1932 and 1943 the Town and Country Planning Act 1944 and the New Towns Act 1946 and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

(2) This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

PART VI.

—cont.

10 & 11 Geo. 6.
c. 51.

32. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Minister respectively without the consent in writing of the Commissioners of Crown Lands or the Minister as the case may be on behalf of His Majesty first had and obtained for that purpose.

Crown rights.

33. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall be paid by the Trustees out of the harbour revenue or out of money authorised to be raised under the Shoreham Harbour Acts 1926 to 1948.

Costs of Act.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PART I.

RATES IN RESPECT OF ANIMALS AND GOODS SHIPPED UNSHIPPED OR
TRANSHIPPED WITHIN THE HARBOUR.

Animals live—							s.	d.
Horses	...	...	...	...	...	each	2	6
Sheep	...	...	...	...	...	each	0	6
Bacon	...	...	...	...	...	per ton	3	4
Ballast sand shingle etc.	...	...	...	...	...	per ton	0	1½
Bark	...	...	...	...	...	per ton	1	0
Barrels empty	...	...	...	...	...	each	0	0½
Basic slag	...	...	...	...	...	per ton	0	6
Baskets	...	...	...	...	...	per dozen	1	0
Beer in casks	...	...	...	...	...	per 36 gallons	0	3
Books	...	...	...	...	...	per ton	5	0
Bottles	...	...	...	...	...	per gross	0	3
Brass	...	...	...	...	...	per ton	3	4
Breeze blocks	...	...	...	...	...	per ton	0	10
Bricks	...	...	...	...	...	per thousand	1	0
Brooms	...	...	...	...	...	per gross	1	6
Butter	...	...	...	...	...	per ton	3	4
Candles	...	...	...	...	...	per ton	1	8
Canvas	...	...	...	...	...	per ton	2	6
Carbide of calcium	...	...	...	...	...	per ton	1	8
Cement	...	...	...	...	...	per ton	0	9
Cheese	...	...	...	...	...	per ton	3	4
Chemicals	...	...	...	...	...	per ton	1	0
Chemical manures	...	...	...	...	...	per ton	1	0
Coal	...	...	...	...	...	per ton	0	10
Cocoa	...	...	...	...	...	per ton	3	4
Coke	...	...	...	...	...	per ton	0	5
Concrete blocks	...	...	...	...	...	per ton	0	5
Copper	...	...	...	...	...	per ton	3	4
Cordage	...	...	...	...	...	per ton	3	4
Cork	...	...	...	...	...	per ton	6	8
Corn and meals—								
Barley	...	...	...	...	...	per ton	1	6
Beans	...	...	...	...	...	per ton	1	6
Bran	...	...	...	...	...	per ton	1	0
Flour	...	...	...	...	...	per ton	1	0
Maize (Indian corn)	...	...	...	...	...	per ton	1	6
Malt	...	...	...	...	...	per ton	1	6
Oatmeal	...	...	...	...	...	per ton	1	6

Corn and meals *cont.*

								s.	d.	1ST SCH. — <i>cont.</i>
Oats	...	...	...	...	...	...	per ton	1	6	
Peas	...	...	...	...	...	...	per ton	1	6	
Rye	...	...	...	...	...	...	per ton	1	6	
Tares	...	...	...	...	...	...	per ton	1	6	
Wheat	...	...	...	...	...	...	per ton	1	6	
Cotton yarn	...	...	...	...	...	...	per ton	1	8	
Culm	...	...	...	...	...	...	per ton	0	8½	
Earthenware	...	...	...	...	...	...	per ton	1	8	
Eggs	...	...	...	...	...	...	per 120	0	1	
Explosives	...	...	...	...	...	...	per ton	3	4	
Feathers	...	...	...	...	...	...	per ton	10	0	
Fish—										
Fresh or salted (other than shellfish)	...	...	...	...	...	...	per ton	1	8	
Shellfish	...	...	...	...	...	...	per ton	3	4	
Flax	...	...	...	...	...	...	per ton	3	4	
Fruit dried	...	...	...	...	...	...	per ton	3	4	
Fruit fresh not otherwise specified	...	...	...	...	...	...	per ton	3	4	
Furniture	...	...	...	...	...	per 40 cubic feet	3	4		
Glass	...	...	...	...	...	...	per ton	1	8	
Glass broken	...	...	...	...	...	...	per ton	0	2	
Hay and straw	...	...	...	...	...	...	per ton	1	6	
Hemp	...	...	...	...	...	...	per ton	3	4	
Honey	...	...	...	...	...	...	per ton	3	4	
Hops	...	...	...	...	...	...	per ton	3	4	
Iron and steel—										
Scrap	...	...	...	...	...	...	per ton	0	6	
Pig iron	...	...	...	...	...	...	}	per ton	1	0
Billets	...	...	...	...	...	...				
Ingots	...	...	...	...	...	...				
Angles	...	...	...	...	...	...				
Chimney pots	...	...	...	...	...	...				
Drain pipes	...	...	...	...	...	...				
Hoops	...	...	...	...	...	...				
Pipes	...	...	...	...	...	...				
Plates	...	...	...	...	...	...				
Rails	...	...	...	...	...	...				
Rods	...	...	...	...	...	...				
Sheets	...	...	...	...	...	...				
Anchors	...	...	...	...	...	...				
Bolts and nuts	...	...	...	...	...	...				
Castings	...	...	...	...	...	...				
Chains	...	...	...	...	...	...	}	per ton	2	6
Nails	...	...	...	...	...	...				
Screws	...	...	...	...	...	...				
Hardware	...	...	...	...	...	...				
Machinery (not exceeding 3 tons)	...	...	...	...	...	...				
Machinery (exceeding 3 tons)	...	...	...	...	...	...	per ton	3	4	
Jute	...	...	...	...	...	...	per ton	3	4	
Lard	...	...	...	...	...	...	per ton	3	4	
Lead	...	...	...	...	...	...	per ton	3	4	
Leather	...	...	...	...	...	...	per ton	1	8	
Lime	...	...	...	...	...	...	per ton	0	9	
Marble	...	...	...	...	...	...	per ton	1	8	

1ST SCH.
—cont.

								s.	d.
Matches	...	...	...	...	...	...	per ton	3	4
Mineral waters	...	...	...	...	...	...	per ton	1	8
Moss and peat litter	...	...	...	...	...	...	per ton	0	4
Oakum	...	...	...	...	...	...	per ton	1	8
Oil excepting fuel oil	...	...	...	...	...	...	per ton	1	0
Oil fuel	...	...	...	...	...	...	per ton	0	6
Oilcake	...	...	...	...	...	...	per ton	1	0
Ores	...	...	...	...	...	...	per ton	0	6
Paints and colours	...	...	...	...	...	...	per ton	1	8
Paper	...	...	...	...	...	...	per ton	1	8
Patent fuel	...	...	...	...	...	...	per ton	0	5
Paving and kerbstones	...	...	...	...	...	...	per ton	0	8
Pitch	...	...	...	...	...	...	per ton	0	6
Plaster	...	...	...	...	...	...	per ton	1	8
Poultry	...	...	...	...	...	...	per ton	10	0
Rags	...	...	...	...	...	...	per ton	1	8
Residual products of gas manufacture—									
Coal tar	...	...	...	...	...	...	per 200 gallons	0	2½
Oil tar	...	...	...	...	...	...	per 200 gallons	0	2½
Tar water	...	...	...	...	...	...	per 200 gallons	0	2½
Creosote	...	...	...	...	...	...	per 200 gallons	0	4
Rice	...	...	...	...	...	...	per ton	2	0
Roadstone	...	...	...	...	...	...	per ton	0	4
Ropes	...	...	...	...	...	...	per ton	3	4
Rosin	...	...	...	...	...	...	per ton	1	8
Salt	...	...	...	...	...	...	per ton	1	8
Saltpetre	...	...	...	...	...	...	per ton	1	0
Seeds (agricultural and vegetable not otherwise specified)									
Slates	...	...	...	...	...	...	per ton	1	0
Soap	...	...	...	...	...	...	per ton	1	8
Starch	...	...	...	...	...	...	per ton	3	4
Sugar	...	...	...	...	...	...	per ton	3	4
Tallow	...	...	...	...	...	...	per ton	1	8
Tiles unglazed	...	...	...	...	...	...	per ton	0	6
Tiles glazed	...	...	...	...	...	...	per ton	0	8
Tin	...	...	...	...	...	...	per ton	3	4
Tobacco	...	...	...	...	...	...	per ton	3	4
Tow	...	...	...	...	...	...	per ton	3	4
Vegetables—									
Cabbages	...	...	...	...	...	...	per ton	1	8
Potatoes	...	...	...	...	...	...	per ton	1	0
Tomatoes	...	...	...	...	...	...	per ton	1	0
Vehicles	...	...	...	...	...	...	each	5	0
Vitriol	...	...	...	...	...	...	per gallon	0	0¼
Wallboard	...	...	...	...	...	...	per ton	1	8
Wines and spirits	...	...	...	...	...	...	per gallon	0	0¼
Wood—									
Softwood	...	...	...	...	...	...	per load of 50 cubic feet	1	0
Hardwood	...	...	...	...	...	...	per load of 40 cubic feet	1	6
Firewood	...	...	...	...	...	...	per load of 50 cubic feet	0	6
Wood goods manufactured or semi-manufactured								per ton	3 4
Wool	...	...	...	...	...	...	per ton	1	8

For all articles not specified in this Part of this Schedule sums may be charged equal to the rates payable in respect of goods specified therein which in the judgment of the Trustees are as nearly as may be of like nature package and quantity.

All returned empties are exempted from payment of rates.

In charging the rates on goods the gross weight or measurement of all goods shall be taken. Fractional parts of any weight measure number or value shall be charged proportionately and the minimum charge for a single package shall be one penny.

PART II.

RATES IN RESPECT OF VESSELS OTHER THAN THOSE TO WHICH PART III OF THIS SCHEDULE APPLIES.

(a) *Tonnage rates.*

FOR EVERY VESSEL (EXCEPT FISHING BOATS) ENTERING THE HARBOUR.

Under 100 register tons threepence per register ton.

Of 100 and under 150 register tons fourpence per register ton.

Of 150 and under 200 register tons fivepence per register ton.

Of 200 register tons and upwards sixpence per register ton.

(b) *Lightage rates.*

FOR EVERY VESSEL ENTERING THE HARBOUR (IN ADDITION TO THE RATES MENTIONED IN HEAD (a) OF THIS PART OF THIS SCHEDULE).

For every foot depth of water drawn on entering the harbour sixpence.

(c) *Remaining in the harbour more than thirty days.*

FOR EVERY MONTH OR PART OF A MONTH DURING WHICH A VESSEL (NOT BEING A VESSEL TO WHICH HEAD (d) OF THIS PART OF THIS SCHEDULE APPLIES) REMAINS IN THE HARBOUR AFTER THE EXPIRATION OF THIRTY DAYS FROM THE DATE OF ENTRY (IN ADDITION TO THE RATES MENTIONED IN HEAD (a) AND HEAD (b) OF THIS PART OF THIS SCHEDULE).

Under 150 register tons twopence per register ton.

Of 150 and under 200 register tons twopence halfpenny per register ton.

Of 200 register tons and upwards threepence per register ton.

(d) *Vessels used for the carriage of cargo within the harbour.*

FOR EVERY YEAR OR PART OF A YEAR DURING WHICH A VESSEL WHICH WHEN IN USE IS USED WHOLLY OR MAINLY FOR CONVEYING ANIMALS OR GOODS FROM ONE PART OF THE HARBOUR TO ANOTHER PART OF THE HARBOUR REMAINS IN THE HARBOUR (IN ADDITION TO THE RATES MENTIONED IN HEAD (a) AND HEAD (b) OF THIS PART OF THIS SCHEDULE WHEN APPLICABLE).

Two pounds.

PART III.

1ST SCH.
—cont.

- (a) FOR EVERY VESSEL NOT USED FOR THE CARRIAGE OF CARGO EXCEPT VESSELS TO WHICH HEADS (b) (c) OR (d) OF THIS PART OF THIS SCHEDULE APPLY.

Length of vessel.	Annual rates.	Six- monthly rates.	Monthly rates.	Weekly rates.
	£ s. d.	£ s. d.	£ s. d.	£ s. d.
Not exceeding 10 ft. ...	10 0	7 6	3 4	1 3
Exceeding 10 ft. but not exceeding 20 ft. ...	1 0 0	15 0	6 8	2 6
Exceeding 20 ft. but not exceeding 30 ft. ...	1 10 0	1 2 6	10 0	3 9
Exceeding 30 ft. but not exceeding 50 ft. ...	3 0 0	2 5 0	1 0 0	7 6
Exceeding 50 ft. but not exceeding 75 ft. ...	5 0 0	3 15 0	1 13 4	12 6
Exceeding 75 ft. but not exceeding 100 ft. ...	6 0 0	4 10 0	2 0 0	15 0
Exceeding 100 ft. but not exceeding 125 ft. ...	8 0 0	6 0 0	2 13 4	1 0 0
Exceeding 125 ft. but not exceeding 150 ft. ...	10 0 0	7 10 0	3 6 8	1 5 0

- (b) FOR EVERY VESSEL USED (WHETHER WITHIN OR OUTSIDE THE HARBOUR) TO CARRY PASSENGERS FOR HIRE OR REWARD.

Not exceeding 50 ft. in length. Twice the rates specified in the table in head (a) of this Part of this schedule for a vessel of the same length.

Exceeding 50 ft. in length. Three times the rates specified in the table in head (a) of this Part of this schedule for a vessel of the same length.

- (c) FOR EVERY VESSEL USED FOR TOWING.

Not exceeding 50 ft. in length—per entry to the harbour 15s. od.

Exceeding 50 ft. in length—per entry to the harbour 30s. od.

For every week or part of a week during which a vessel remains in the harbour after the expiration of thirty days from the date of entry (in addition to the rates above mentioned) 2s. 6d.

(d) FOR EVERY SEAPLANE OR SIMILAR VESSEL.

Such reasonable rates as may from time to time be fixed by the Trustees with the consent of the Minister.

1ST SCH.
—cont.

In calculating the length of any vessel for the purposes of this Part of this schedule all measurements shall be taken overall (that is from the foreside of the stem to the afterside of the sternpost measured along the midship line).

In the case of hydroplanes outboard and other motor boats and other vessels designed to exceed a speed of fifteen miles per hour through the water the rates applicable thereto in accordance with head (a) or head (b) of this Part of this schedule shall be doubled.

THE SECOND SCHEDULE.

FORM OF MORTGAGE.

SHOREHAM HARBOUR TRUSTEES.

By virtue of the Shoreham Harbour Act 1948 and of other their powers in that behalf them enabling the Shoreham Harbour Trustees (hereinafter referred to as "the Trustees") in consideration of the sum of _____ pounds (hereinafter referred to as "the principal sum") paid to them by

(hereinafter referred to as "the mortgagee") do hereby grant and assign to the mortgagee [his] executors administrators and assigns such proportion of the harbour revenue as defined by the Shoreham Harbour Act 1926 as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenue To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of _____ per centum per annum from the

day of _____ nineteen hundred and _____ until payment of the principal sum such interest to be paid half-yearly on the _____ day of _____ and the _____ day of _____ in each year

And it is hereby agreed that the principal sum shall be repaid at the principal office of the Trustees [(subject as hereinafter provided) on the _____ day of _____ nineteen hundred and _____ or (if not repaid on that date) at any time thereafter on the expiration of six calendar months' notice in writing by the Trustees to the mortgagee or by the mortgagee to the Trustees] [by _____]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Trustees and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the clerk to the Trustees for the time being and that upon such endorsement being made whether relating to

2ND SCH.
—cont.

extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Trustees have caused their common seal to be hereunto affixed this _____ day of _____ nineteen hundred and _____

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____
consenting the within-mentioned time for repayment of the within-mentioned principal sum of _____ is hereby extended to the _____ day of _____ nineteen hundred and _____ [and the interest to be paid thereon on and from the _____ day of _____ nineteen hundred and _____ is hereby declared to be at the rate of _____ per centum per annum].

Dated this _____ day of _____ nineteen hundred and _____

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] _____ of _____ in consideration of the sum of _____ pounds paid to me by _____ of _____ (hereinafter referred to as "the transferee") do hereby transfer to the transferee [his] executors administrators and assigns [the within-written security] [the mortgage number _____ of the harbour revenue of the Shoreham Harbour Trustees bearing date the _____ day of _____] and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this _____ day of _____ nineteen hundred and _____

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